

**Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City**

**TWENTIETH CONGRESS
First Regular Session**

HOUSE BILL NO. 2318



**Introduced by Representatives
BELLA VANESSA B. SUANSING and MIKAELA ANGELA B. SUANSING**

**AN ACT
CRIMINALIZING THE NON-CONSENSUAL USE OF FACE AND LIKENESS OF
PERSONS IN CONTENT CREATED THROUGH ARTIFICIAL INTELLIGENCE
OR THROUGH ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL
MEANS, THEREBY DEFINING THE CRIME OF DIGITAL FORGERY IN
RELATION TO THE ACTS TO BE CRIMINALIZED, AMENDING FOR THE
PURPOSE REPUBLIC ACT NO. 10175, OTHERWISE KNOWN AS THE
“CYBERCRIME PREVENTION ACT OF 2012”**

EXPLANATORY NOTE

In the pursuit of safeguarding Filipinos from threats posed by digital manipulation on personal privacy and integrity, especially in the advent of the epoch of artificial intelligence, the following bill aims to criminalize the non-consensual use of a person’s face and likeness in content created through artificial intelligence or any other similar computer-generated or technological means. This proposed measure aims to amend for this purpose Republic Act No. 10175, or the Cybercrime Prevention Act of 2012, particularly to introduce the crime of digital forgery as a distinct criminal offense.

This proposed measure adopts for the purpose the definition of the crime of “digital forgery” as described in United States Public Law No. 119-12, and augments to this definition to adapt the term to the Philippine context. This definition provides a succinct basis to prosecute acts that were previously ambiguous under existing laws, considering the novel nature of content involving the use of artificial intelligence.

Proposals under this bill seek to provide legal recourse to anyone whose face and likeness was used without their consent, and extends to penalize not only those who generate unauthorized content but also those who publish, distribute, sell, promote or advertise such content, actions which, whether done directly or inadvertently, enable the growth of synthetic media that contribute to the abuse and harm of individuals. Heavier penalties are also prescribed for cases involving malicious intent, particularly when digital forgery is used to defame or damage the honor and dignity of a person. This proposed measure also imposes stiffer sanctions on individuals or entities who receive financial compensation for creating,

distributing, promoting, or advertising forged content, underscoring the seriousness of monetizing harm against another person's identity or reputation especially through new forms of technological advancements.

On the other hand, and in the pursuit of the principles of fairness and impartiality under law, this proposed measure also provides careful boundaries of criminal responsibility and places legal parameters to restrict the scope of punitive action against possible offenders. Under provisions of this proposed measure, criminal intent must first be established on the part of those who share or repost visual content produced or created through digital forgery before offenders may be held liable for penalties under law. Moreover, to ensure that well-intentioned individuals are safeguarded from undue prosecution, persons who committed the act of publishing, distributing, selling, advertising or promoting content created through digital forgery while making a good faith effort to exhaustively verify that the content was not digitally forged will not be held criminally liable under proposed provisions in this bill.

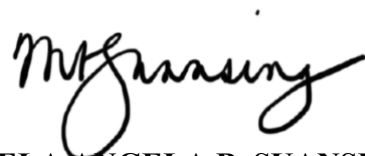
The proposal of this measure, at this point in time, aims not only to establish robust legal protections but also to foster a culture of vigilance and responsibility among the public. The country is at the precipice of sweeping transformations ushered in by artificial intelligence. The current moment necessitates a legal framework ready and prepared to address the pernicious and malicious by-products of this technology as such content threatens to ravage the country's digital ecosystem. Regulatory mechanisms must evolve, if not faster than, at the rate at which technology evolves. Rapid digitalization has now enabled opportunities for cybercriminals to harm individuals and organizations, instigating new forms of criminality and expanding the range of cybercrimes. The State, with its mandate to protect all Filipinos from all types of attack, must exhaust all powers to fortify existing national frameworks and assure the preservation of personal security, identity, integrity and dignity of all Filipinos.

With these provisions introduced, there must also be a corresponding call for the public to practice digital responsibility, especially when using such a powerful technological tool such as artificial intelligence. Confronted with our new reality, there must be a collective effort on the part of the government and its people to balance the critical right to freedom of expression with the imperative to protect individual rights in the digital realm.

In view of the foregoing, the approval of this bill is earnestly sought.



BELLA VANESSA B. SUANSING
2nd District of Sultan Kudarat



MIKAELA ANGELA B. SUANSING
1st District of Nueva Ecija

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OR THROUGH ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL
MEANS, THEREBY DEFINING THE CRIME OF DIGITAL FORGERY,
AMENDING FOR THE PURPOSE REPUBLIC ACT NO. 10175, OTHERWISE
KNOWN AS THE “CYBERCRIME PREVENTION ACT OF 2012”

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. Amendatory Provisions. – For the purposes of this Act, the following provisions of Republic Act No. 10175, otherwise known as the “Cybercrime Prevention Act of 2012”, are hereby amended as follows:

(a) Section 3 is hereby amended to read as follows:

“**Section 3. Definition of Terms.** – For purposes of this Act, the following terms are hereby defined as follows:

“x x x

“(C) **ARTIFICIAL INTELLIGENCE (AI)** REFERS TO A MACHINE-BASED OR ARTIFICIAL SYSTEM THAT CAN, FOR A GIVEN SET OF HUMAN-DEFINED OBJECTIVES OR INPUTS, GENERATE OUTPUT, MAKE PREDICTIONS, SOLVE PROBLEMS AND ACCOMPLISH TASKS REQUIRING HUMAN-LIKE PERCEPTION, COGNITION, PLANNING, LEARNING, COMMUNICATION OR ACTION.

“x x x”

“(J) **CONSENT** REFERS TO THE AFFIRMATIVE, WILLFUL, CONSCIOUS AND VOLUNTARY AUTHORIZATION MADE BY AN

**INDIVIDUAL FREE FROM FORCE, FRAUD,
MISREPRESENTATION, FEAR, THREAT, OR COERCION.**

“X X X

“(O) *DIGITAL FORGERY* REFERS TO THE CREATION, PRODUCTION OR MANUFACTURING OF ANY VISUAL DEPICTION OF AN IDENTIFIABLE INDIVIDUAL THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE, WITHOUT THE CONSENT OF THE IDENTIFIABLE INDIVIDUAL WHO IS THE SUBJECT OF THE VISUAL DEPICTION CREATED, PRODUCED OR MANUFACTURED, OR WHO IS SHOWN OR REPRESENTED THEREIN.

“DIGITAL FORGERY IS COMMITTED THROUGH ACTIONS SUCH AS, BUT NOT LIMITED TO, MANIPULATING, ADAPTING OR ALTERING AN AUTHENTIC VISUAL DEPICTION OF AN IDENTIFIABLE INDIVIDUAL THROUGH THE USE OF COMPUTER-GENERATED OR TECHNOLOGICAL MEANS, THEREBY PRODUCING AN OUTPUT THAT, WHEN VIEWED AS A WHOLE BY A REASONABLE PERSON, IS INDISTINGUISHABLE FROM AN AUTHENTIC VISUAL DEPICTION OF THE IDENTIFIABLE INDIVIDUAL.

“(P) *IDENTIFIABLE INDIVIDUAL* REFERS TO AN INDIVIDUAL WHO IS THE SUBJECT OF A VISUAL DEPICTION OR IS SHOWN OR REPRESENTED THEREIN WHOSE FACE, LIKENESS, OR OTHER DISTINGUISHING CHARACTERISTIC SUCH AS, BUT NOT LIMITED TO, A UNIQUE BIRTHMARK OR OTHER RECOGNIZABLE FEATURE, IS DISPLAYED IN THE VISUAL DEPICTION IN QUESTION.

“X X X

“(R) INTERNET INTERMEDIARIES REFER TO PERSONS OR ENTITIES THAT PROVIDE INFRASTRUCTURE, PLATFORMS, ACCESS TO, AND HOST, TRANSMIT AND INDEX CONTENT, PRODUCTS AND SERVICES ORIGINATED BY THIRD PARTIES ON THE INTERNET. THESE INCLUDE, AMONG OTHERS:

- (1) INTERNET SERVICE PROVIDERS;**
- (2) WEB HOSTING PROVIDERS INCLUDING DOMAIN NAME REGISTRARS;**
- (3) INTERNET SEARCH ENGINES AND PORTALS;**
- (4) E-COMMERCE INTERMEDIARIES;**

(5) INTERNET PAYMENT SYSTEM PROVIDERS; AND

**(6) PARTICIPATIVE NETWORK PLATFORM PROVIDERS
INCLUDING SOCIAL MEDIA INTERMEDIARIES.**

“X X X.”

(b) Section 4 is hereby amended to read as follows:

“Section 4. *Cybercrime Offenses.* – The following acts constitute the offense of cybercrime punishable under this Act:

“X X X

“(c) Content-related Offenses:

“X X X

“(5) DIGITAL FORGERY. – THE CREATION, PRODUCTION, OR MANUFACTURING OF ANY VISUAL DEPICTION OF AN IDENTIFIABLE INDIVIDUAL THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR THROUGH ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE, WITHOUT THE CONSENT OF THE IDENTIFIABLE INDIVIDUAL WHO IS THE SUBJECT OF THE VISUAL DEPICTION CREATED, PRODUCED OR MANUFACTURED, OR WHO IS SHOWN OR REPRESENTED THEREIN.

“(6) PUBLICATION, DISTRIBUTION, SALE, ADVERTISEMENT, PROMOTION OF VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY. – THE PUBLICATION, DISTRIBUTION, SALE, ADVERTISEMENT OR PROMOTION OF VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY:

“*PROVIDED*, THAT IF ELEMENTS OF ANY CRIME UNDER TITLE 13 OF THE REVISED PENAL CODE (CRIMES AGAINST HONOR) ARE PRESENT IN THE COMMISSION OF THE ACT OF PUBLICATION OF VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY, THE ACT SHALL QUALIFY TO INCUR THE PENALTIES UNDER SECTION 10, PARAGRAPH 7 OF THIS ACT;

“*PROVIDED ALSO*, THAT EVIDENCE OF FINANCIAL COMPENSATION RECEIVED BY THE OFFENDER FOR THE ACT OF PUBLISHING VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY SHALL QUALIFY THE

OFFENDER TO INCUR THE PENALTIES UNDER SECTION 10, PARAGRAPH 7 OF THIS ACT;

“PROVIDED ALSO, THAT THE OFFENDER TO BE HELD LIABLE AS COMMITTING THE OFFENSE OF PUBLISHING VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY THROUGH AN ONLINE PLATFORM SHALL BE THE FIRST PUBLISHER OF THE POST CONTAINING THE VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY, AS DETERMINED BASED ON THE DATE AND TIME OF PUBLICATION OF THE POST FROM INFORMATION ON TRAFFIC DATA OBTAINED FROM THE INTERNET INTERMEDIARY ON WHICH THE CONTENT WAS PUBLISHED;

“PROVIDED ALSO, THAT EVIDENCE OF FINANCIAL COMPENSATION RECEIVED BY THE OFFENDER FOR THE ACT OF DISTRIBUTING, SELLING, ADVERTISING OR PROMOTING VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY SHALL QUALIFY THE OFFENDER TO INCUR THE PENALTIES UNDER SECTION 10, PARAGRAPH 8 OF THIS ACT;

“PROVIDED ALSO, THAT THE PUBLICATION, DISTRIBUTION, SALE, ADVERTISEMENT, PROMOTION OF SEXUALLY EXPLICIT VISUAL DEPICTIONS OF AN IDENTIFIABLE INDIVIDUAL THROUGH DIGITAL FORGERY SHALL QUALIFY THE OFFENDER TO INCUR THE PENALTIES UNDER SECTION 10, PARAGRAPH 7 OF THIS ACT;

“PROVIDED FURTHER, THAT OFFENDERS WHO DISTRIBUTED VISUAL CONTENT PRODUCED THROUGH DIGITAL FORGERY BY SHARING OR REPOSTING THE CONTENT IN QUESTION ON THEIR PERSONAL USER PROFILES IN ONLINE PLATFORMS MAY ONLY BE HELD LIABLE FOR COMMITTING THE ACT IF THE INTENT TO COMMIT ANY CRIME UNDER TITLE 13 OF THE REVISED PENAL CODE (CRIMES AGAINST HONOR) AGAINST THE IDENTIFIABLE INDIVIDUAL IS ESTABLISHED ON THE PART OF THE OFFENDER;

“PROVIDED FINALLY, THAT CRIMINAL LIABILITY SHALL NOT BE IMPOSED ON OFFENDERS WHO COMMITTED THE ACT OF PUBLISHING, DISTRIBUTING, SELLING, ADVERTISING OR PROMOTING CONTENT PRODUCED THROUGH DIGITAL FORGERY WHILE MAKING A GOOD FAITH EFFORT TO EXHAUSTIVELY VERIFY THAT THE CONTENT WAS NOT DIGITALLY FORGED.”

“(7) FINANCING OF DIGITAL FORGERY. – ANY PERSON WHO DIRECTLY AND WILLFULLY PROVIDES FUNDS FOR ACTS TO

**COMMIT AND FACILITATE THE ACT OF DIGITAL FORGERY,
WITH THE WILLFUL INTENTION THAT THEY SHOULD BE
USED OR WITH THE KNOWLEDGE THAT THE FUNDS SHALL
BE USED FOR THE ACT OF DIGITAL FORGERY.**

- (c) An additional section is hereby inserted after Section 5, to be titled as Section 6, which shall read as follows:

“SECTION 6. *SYNDICATED AND LARGE-SCALE VIOLATIONS OF THIS ACT.* – ANY VIOLATION OF THIS ACT SHALL BE DEEMED TO HAVE BEEN COMMITTED BY A SYNDICATE IF CARRIED OUT BY A GROUP OF THREE (3) OR MORE PERSONS CONSPIRING OR CONFEDERATING WITH ONE ANOTHER.

IF THE CRIME WAS COMMITTED AGAINST THREE (3) OR MORE PERSONS, IT SHALL BE CONSIDERED AS LARGE-SCALE VIOLATION OF THIS ACT.

- (d) An additional section is hereby inserted after the newly inserted section titled Section 6, to be titled as Section 7, which shall read as follows:

“SECTION 7. *JURIDICAL PERSONS.* – IF THE OFFENDER IS A JURIDICAL PERSON, THE PENALTY SHALL BE IMPOSED UPON THE OWNER, MANAGER, PARTNER, MEMBER OF THE BOARD OF DIRECTORS AND/OR ANY RESPONSIBLE OFFICER OF AN INTERPRISE WHO PARTICIPATED IN THE COMMISSION OF THE CRIME OR SHALL HAVE KNOWINGLY PERMITTED OR FAILED TO PREVENT ITS COMMISSION. IN ADDITION, THE CORPORATION SHALL BE FINED A MINIMUM OF TEN PERCENT (10%) BUT NOT MORE THAN THIRTY PERCENT (30%) OF ITS NET WORTH AND ITS RESPECTIVE LICENSE OR PERMIT MAY BE REVOKED.

- (e) Section 6, to be retitled as Section 8, is hereby amended:

“Section 8. All crimes defined and penalized by the Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies, **THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR THROUGH ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE, shall be covered by the relevant provisions of this Act: *Provided*, That the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code, as amended, and special laws, as the case may be.”**

- (f) Section 8, to be retitled as Section 10, is hereby amended:

“Section 10. *Penalties.* – x x x

“x x x

“Any person found guilty of any of the punishable acts enumerated in Section 4(c)(3), **SECTION 4(C)(5), SECTION 4(C)(6)(1)** shall be punished with imprisonment of arresto mayor or a fine of at least Fifty thousand pesos (PhP50,000.00) but not exceeding Two hundred fifty thousand pesos (PhP250,000.00) or both.

“ANY PERSON FOUND GUILTY OF THE PUNISHABLE ACTS UNDER SECTION 4(C)(6)(2), SECTION 4(C)(6)(3), SECTION 4(C)(6)(6) AND SECTION 4(C)(6)(8) SHALL BE PUNISHED WITH IMPRISONMENT OF PRISION MAYOR AND A FINE OF AT LEAST TWO MILLION PESOS (PHP 2,000,000.00).

“ANY PERSON FOUND GUILTY OF THE PUNISHABLE ACTS UNDER SECTION 4(C)(6)(5) SHALL BE PUNISHED WITH IMPRISONMENT OF PRISION CORRECCIONAL AND A FINE OF AT LEAST TWO HUNDRED FIFTY THOUSAND PESOS (PHP 250,000.00).

“X X X.”

- (g) An additional section is hereby inserted after Section 26, which shall be retitled as Section 28, to be to be titled as Section 29, which shall read as follows:

“SECTION 29. WHO MAY FILE A COMPLAINT. – COMPLAINTS ON CASES OF ANY FORM OF OFFENSE DEFINED UNDER SECTION 4(C)(5), SECTION 4(C)(6) AND SECTION 4(C)(7) OF THIS ACT MAY BE FILED BY THE IDENTIFIABLE INDIVIDUAL WHO IS THE SUBJECT OR WHO IS SHOWN OR REPRESENTED IN THE VISUAL DEPICTION IN QUESTION, OR BY ANY PERSON WHO HAS PERSONAL KNOWLEDGE OF THE CIRCUMSTANCES OF THE COMMISSION OF ANY OFFENSE UNDER THE AFORESAID SECTIONS OF THIS ACT.

THE DEPARTMENT OF JUSTICE AND THE CICC SHALL DEVELOP THE GUIDELINES FOR THE EFFECTIVE EXTENSION OF LEGAL RECOURSES AND LEGAL REMEDIES FOR IDENTIFIABLE INDIVIDUALS WHO DID NOT GIVE THEIR CONSENT FOR THE USE OF THEIR FACES AND LIKENESS IN THE CREATION, PRODUCTION OR MANUFACTURING OF CONTENT THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL MEANS.

- (h) All sections in Republic Act No. 10175 shall be renumbered and retitled according to the amendments introduced by this Act.

SECTION 2. Implementing Rules and Regulations. – The members of the CICC shall develop and promulgate the implementing rules and regulations (IRR) within sixty (60) days from the effectivity of this Act.

SECTION 3. Separability Clause. - If any part of this Act is declared unconstitutional or invalid, the other provisions not affected thereby shall continue to be in full force and effect.

SECTION 4. Repealing Clause. – All laws, decrees, executive orders, proclamations, rules and regulations, and other issuances, or parts thereof which are inconsistent with the provisions of this Act are hereby repealed, amended or modified accordingly.

SECTION 5. Effectivity. - This Act shall take effect after fifteen (15) days following its complete publication in the Official Gazette or in a newspaper of general circulation.

Approved,